

24VECV03985 24VECV03985

County: los-angeles

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Case Number: 24VECV03985 Hearing Date: August 25, 2026 Dept: B

Tentative Ruling

Boeckman v. Chick-Fil-A, Case no. 24VECV03985

Hearing date August 25, 2026

Defendant

Achugbue's Motion to Quash Third-Party Deposition Subpoena

Plaintiffs

Boeckman sue defendants Chick-Fil-A, Inc., Achugbue, LA City Cab LLC, Balaker and others for injury arising from a motor vehicle accident. Plaintiff taxi passengers were injured when their taxi was struck by a vehicle driven by defendant Achugbue, an off-shift Chick-Fil-A employee. Plaintiffs served a deposition subpoena for production of business records on third-party First Kim Company, LLC. Defendant Achugbue moves to quash. Plaintiffs oppose.

Plaintiffs

request judicial notice of the case file relating to criminal charges brought against Achugbue, case no. 24VWCF01501-01. GRANTED pursuant to Evid. Code §452(d).

Plaintiffs

object to Achugbue's separate statement, asserting it is improperly formatted and fails to specifically address each item identified in the subpoena. While the separate statement fails to specifically address each item of discovery, offering broad arguments against the subpoena as a whole, the court declines to strike the separate statement as defective.

Plaintiffs

are entitled to discovery regarding any matter, not privileged, "relevant to the subject matter involved...if the matter is itself admissible in evidence or appears to be reasonably calculated to lead to the discovery of admissible evidence...." Code Civ. Proc. §2017.010. For discovery purposes, a matter is relevant if the information sought might reasonably lead to admissible evidence, regardless of whether the information sought itself is admissible. *Glenfed Dev. Corp. v. Superior Ct.* (1977) 53 Cal.App.4th 1113, 1116-17. California law provides a broad right to discovery. See *Greyhound Corp. v. Superior Ct.* (1961) 56 Cal.2d 355, 377-78. Information is discoverable if it "might reasonably assist a party in evaluating the case, preparing for trial or facilitating settlement." *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal. App. 4th 1009.

Plaintiffs

seek 11 categories of documents relating to Achugbue's employment with Chick-Fil-A and Chick-Fil-A management practices. Plaintiffs seek: (1) time clock records and payroll records for Achugbue 1/1/24-3/1/24; (2) emails, written statements, reports or documents that describe, mention or refer to Achugbue; (3) emails, written statements, reports or other documents that describe, mention or refer to the collision; (4) documents that describe, refer or relate to management, control, ownership, operation, assignment and/or transfer of the Chick-fil-A restaurant where Achugbue worked from 1/1/24-3/1/24; (5) documents or communications between First Kim and Chick-Fil-A regarding a) Achugbue; b) the collision; and/or c) staffing, job duties, work hours, and/or overtime at the location Achugbue worked; (6) statements regarding a) Achugbue; b) the collision; and/or c) staffing, job duties, work hours, and/or overtime at the Westwood Chick-Fil-A; (7) documents regarding the date and existence of an assignment of the Chick-Fil-A franchise by defendant Eric Kim to First Kim Company, LLC; (8) documents that describe, refer or relate to Achugbue's job duties, tasks and employment from date of hire to present, including personnel file, employment reviews, daily/weekly/monthly job schedules, write-ups, pay, benefits and/or reimbursements; (9) documents related to employment policies, practices and procedures in effect for Achugbue and other employees at the Westwood location from date of hire to present; (10) list of all employees, with current addresses/telephone numbers, for employees at the Westwood Chick-fil-A from 1/1/24-3/1/24; and (11) third party liability insurance policies in effect 1/24 arising from vehicle use and/or business operations at the Westwood location. See Decl. Nguyen, exh. A.

Plaintiffs

allege the accident occurred because Achugbue was overworked on his shift. See Compl., paras. 24-30. Plaintiffs argue the discovery sought goes to proving these issues and identifying witnesses.

Achugbue

argues plaintiffs impermissibly seek “years” of records, violate privacy and seek irrelevant documents. Several categories (Nos. 1, 3-4, 10) are limited to the collision or a two-month period of time. See Decl. Nguyen, exh. A. Categories 4-11 concern general business records addressing employment duties and practices. *Id.*

The

manner in which Achugbue was employed and his duties and management go to alleged overwork and negligence. Plaintiffs are entitled to discovery relating to Achugbue’s employment, including hours worked. No other defendant, including Chick-Fil-A and First Kim, objected to the discovery. However, several categories are impermissibly broad, infringe on third party privacy interests and/or are impermissibly compound. The court limits production as follows:

Categories

1, 3 and 6 are not quashed, as the discovery is relevant. Categories 4, 5, 7, 9 and 11 are not quashed, as Achugbue has no standing to object to these categories. Category 2 is overbroad and unlimited as to time, so is quashed. Category 8 is impermissibly compound and overbroad, so is quashed. Category 10 violates the privacy rights of nonparty employees and is quashed.

GRANTED

in part; categories 2, 8 and 10 are quashed. DENIED as to categories 1, 3-7, 9, and 11. No sanctions to be awarded.